

Contractor Responsibility Verification

FAR 9.103

- (a) Award contracts to responsible prospective contractors only.
- (b) Do not award a contract award before making an affirmative determination of contractor responsibility. Without a clear indication of responsibility, make a determination of nonresponsibility. If the prospective contractor is a small business concern, comply with the subpart, Certificates of Competency and Determinations of Responsibility, at part 19.
- (c) A prospective contractor must affirmatively demonstrate its responsibility, including, when necessary, the responsibility of its proposed subcontractors.

FAR 9.104

To be determined responsible, a prospective contractor must-

- (a) Have adequate financial resources to perform the contract, or the ability to obtain them (see 9.104-3(a));
- (b) Be able to comply with the required or proposed delivery or performance schedule, taking into consideration all existing commercial and governmental business commitments;
- (c) Have a satisfactory performance record (see 9.104-3 (b) and part 42). Do not determine a prospective contractor responsible or nonresponsible based solely on a lack of relevant performance history;
- (d) Have a satisfactory record of integrity and business ethics (see part 42);
- (e) Have the necessary organization, experience, accounting and operational controls, and technical skills, or the ability to obtain them (including, as appropriate, such elements as production control procedures, property control systems, quality assurance measures, and safety programs applicable to materials to be produced or services to be performed by the prospective contractor and subcontractors) (see 9.104-3(a));
- (f) Have the necessary production, construction, and technical equipment and facilities, or the ability to obtain them (see 9.104-3(a)); and
- (g) Be otherwise qualified and eligible to receive an award under applicable laws and regulations (see also inverted domestic corporation prohibition at 9.108).

For each factor, please provide the following information or submit supporting documentations as applicable in order to verify the Contractor's Responsibility IAW FAR 9.104-1:

(a) FINANCIAL RESOURCES

Evidence that the contractor has financial resources to perform the contract such as Profit/Loss statement, most recent Balance Sheet, Available Line of Credit from a bank.

Alternatively, the Offeror may provide a statement from their financial institution or a responsible company official on business letterhead confirming that the offeror currently has sufficient financial resources, or the ability to obtain them, to meet this requirement.

☐ I confirm that a responsible company official will provide documentation of adequate financial resources to support this requirement.

(b) MEETING DELIVERY REQUIREMENT

☐ I confirm that my company is able to comply with the required or proposed delivery or performance schedule, taking into consideration all existing commercial and governmental business commitments

(c) PERFORMANCE RECORD

Provide in the submission two (2), at a minimum, past performance record within the last 3 years
OR a capability statement for a satisfactory performance for *new entrants*. *Exemption: Contractors that had previously satisfied contracts with the Government for which CPARS (Contractor Performance Assessment Reporting System) and SPRS (Supplier Performance Risk System) ratings were received.*

I confirm that my company has satisfactorily performed similar requirements in the past 3 years

☐ I confirm that my company has, or can, provide a capability statement.

☐ My company is exempt from this requirement.

(d) BUSINESS INTEGRITY AND ETHICS

I, _____, (Company Representative) certify that the information within the Responsibility/Qualification section in SAM.gov of _____ (Company Name), which includes a summary report of any Active or Inactive Exclusions, Proceedings, and Other Responsibility & Integrity Information, are recent, correct, and accurate.

(e) ORGANIZATIONAL STRUCTURE

☐ I confirm that my company currently has an adequate organizational structure (experience, accounting and operational controls, and technical skills), the ability to correct any potential deficiencies, and/or the ability to obtain them.

(f) PRODUCTION CAPABILITIES

Provide in the submission production information on technical equipment and facilities, or the ability to obtain them.

☐ I confirm that my company currently has the adequate production, construction, and technical equipment and facilities, and/or the ability to obtain them to fulfil this requirement.

I, _____, (Company Representative) certify that the information provided for factors (a) to (f) are correct and accurate.